

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE CRUZ,

Index No.

Plaintiff

-against

CITY OF NEW YORK, POLICE OFFICER,
JEFFREY SISCO, Shield No. 027744,
POLICE OFFICER HOELMY RAMOS, Shield No.
014563, POLICE OFFICER FREDERIC WINTER,
Shield No. 021252, SERGEANT RICHARD
SANTIAGO, Shield No. 5066,

Defendants

-----X

SUMMONS

To the above named Defendants:

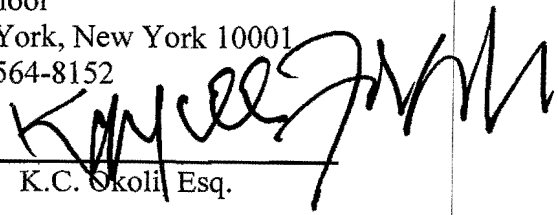
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance, on the plaintiffs' attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designateS County of Bronx as the Venue. The basis of the venue designated by the plaintiff is the place of occurrence.

Dated: New York, New York
October 14, 2014

LAW OFFICES OF K.C. OKOLI, P.C.
Attorneys for Plaintiff
JOSE CRUZ
330 Seventh Avenue
15th Floor
New York, New York 10001
(212)564-8152

By:


K.C. Okoli Esq.

FOR SERVICE ON

THE CITY OF NEW YORK
c/o ZACHARY W. CARTER
Corporation Counsel
NYC Law Department
100 Church Street
New York, New York 10007

POLICE OFFICER JEFFREY SISCO, Shield No. 027744

POLICE OFFICER HOELMY RAMOS, Shield No. 014563

POLICE OFFICER FREDERIC WINTER, Shield No. 021252

SERGEANT RICHARD SANTIAGO, Shield No. 5066

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Plaintiff, by his attorneys, LAW OFFICES OF K.C. OKOLI, P.C., complaining of the
defendants, alleges as follows:

JURISDICTION AND VENUE

1. This action is brought pursuant to the Civil Rights Acts, 42 U.S.C. §1983, for
violation of the plaintiff's civil rights and constitutional rights under the Fourth Amendment to
the United States Constitution, and pursuant to the common law of the State of New York for
false arrest and malicious prosecution.

2. The jurisdiction of the Court is invoked to secure the protection and redress the
deprivation of rights guaranteed to persons, including the plaintiff herein, by the Fourth and
Fourteenth Amendments to the Constitution of the United States.

3. Venue is proper in the County of Bronx based upon the fact that the events or omissions which gave rise to the claims asserted herein occurred within Bronx County.

PARTIES

4. At all times hereinafter mentioned, plaintiff, Jose Cruz ("CRUZ" or "plaintiff"), was a resident of the County of Bronx, City and State of New York.

5. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK (hereinafter, "City") is a municipal corporation established under and by virtue of the laws of the State of New York.

6. At all times hereinafter mentioned, the City maintained, operated, controlled and supervised a police department, the New York City Police Department (hereinafter, "NYPD").

7. At all times hereinafter mentioned, defendant Police Officer Jeffrey Sisco ("SISCO"), was a police officer within the NYPD.

8. At all times hereinafter mentioned, defendant Police Officer Hoelmy Ramos ("RAMOS"), was a police officer within the NYPD.

9. At all times hereinafter mentioned, defendant Police Officer Frederic Winter ("WINTER"), was a police officer within the NYPD.

10. At all times hereinafter mentioned, defendant Sergeant Richard Santiago ("SANTIAGO"), was a police sergeant within the NYPD.

11. At all times hereinafter mentioned, the NYPD employed law enforcement officers, including SISCO, RAMOS, WINTER and SANTIAGO, who performed law enforcement functions and duties for and on behalf of the City within the City's territorial limits.

12. At all times hereinafter mentioned, the individual defendant law enforcement officers, SISCO, RAMOS, WINTER and SANTIAGO were acting in the course and within the scope of their employment as agents or employees of the City.

13. At all times hereinafter mentioned, the individual defendant law enforcement officers, , SISCO, RAMOS, WINTER and SANTIAGO were acting under color of the statutes, ordinances, regulations, customs and usages of the NYPD, the City and State of New York, and under their authority of their offices as law enforcement officers.

STATEMENT OF FACTS

14. On or about July 16, 2011, at approximately 10:30 AM, CRUZ was lawfully present on a public street, at the intersection of Mohegan Avenue and Hornaday Avenue, county of the Bronx, City and State of New York.

15. At the aforementioned time, CRUZ was holding on to his white dog with a leash.

16. Defendants approached CRUZ and began to forcefully grab and wrestle CRUZ at which point CRUZ pleaded with the defendants to let him tether his white dog to a nearby pole for everyone's safety.

17. Defendants ignored CRUZ's request and persisted in forcefully throwing CRUZ to the ground which caused the leash holding CRUZ's white dog to leave CRUZ's hand.

18. As this was going on, CRUZ's white dog lunged towards one of the defendants who stepped back as he fired a shot at the dog. Said defendant fell in the process.

19. The defendants were all acting in concert at the time and forced CRUZ hands behind his back and placed handcuffs on his hands tightly.

20. CRUZ kept asking the defendants what was going on and whether it was

necessary for them to use such force in apprehending him and placing him in cuffs, but none of the defendants responded at the time.

21. CRUZ was thereafter separated from his dog by the defendants who transported CRUZ to the police precinct where CRUZ was fingerprinted, photographed and processed.

22. Unbeknownst to CRUZ, the defendants took CRUZ's dog to an animal shelter where they falsely checked him in as a "lost" dog.

23. The temporary loss of his dog and the refusal of the defendants to reveal its whereabouts caused CRUZ emotional distress.

24. Eventually CRUZ located his dog and had to pay in excess of \$280 to reclaim him from the shelter which boarded him.

25. After spending several hours in police custody, CRUZ was arraigned at the Bronx Supreme Court on various charges.

26. CRUZ made several subsequent court appearances to answer the aforesaid false charges against him, and defendants continued to prosecute those charges against CRUZ until July 23, 2013 when all of those charges were finally dismissed.

27. By reason of the foregoing, LANGOMAS has suffered loss and damage.

AS AND FOR A FIRST CAUSE OF ACTION: FOURTH AMENDMENT SEIZURE

28. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "27" as if fully set forth herein.

29. By reason of the foregoing, defendants committed an unlawful seizure of CRUZ, in violation of CRUZ's rights guaranteed under the Fourth Amendment to the

Constitution of the United States.

30. Said unlawful seizure began on July 16, 2011 and continued until July 23, 2013 when charges were dismissed and was in violation of constitutional rights. Said violation can be redressed pursuant to 42 U.S.C. §1983.

31. By reason of the foregoing, plaintiff has suffered loss and damage.

AS AND FOR A SECOND CAUSE OF ACTION: COMMON LAW FALSE ARREST

32. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "31" as if fully set forth herein.

33. When defendants arrested CRUZ, they fully intended to confine CRUZ and restrain his liberty.

34. CRUZ was fully conscious of his confinement and detention in police custody, until his arraignment before a judge of the Supreme Court, Bronx County.

35. CRUZ did not consent to his aforesaid detention and confinement by the defendants, nor was CRUZ' confinement by the defendants otherwise privileged.

36. By reason of the foregoing, plaintiff has suffered loss and damage.

AS AND FOR A THIRD CAUSE OF ACTION: MALICIOUS PROSECUTION

37. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "36" as if fully set forth herein.

38. Following CRUZ's arraignment, defendants continued to maliciously prosecute CRUZ on the aforesaid false charges, thereby causing CRUZ to make court

appearances. If CRUZ had failed to make any of the aforesaid court appearances, he would have been subject to arrest by an arrest warrant for failure to appear in court.

39. Said malicious prosecution of CRUZ by the defendants continued from July 16, 2011 until the dismissal of the charges on or about July 23, 2013.

40. By reason of the foregoing, plaintiff has suffered loss and damage.

AS AND FOR A FOURTH CAUSE OF ACTION: EXCESSIVE FORCE

41. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "40" as if fully set forth herein.

42. In the course and during the arrest of CRUZ on July 16, 2011, defendants used unlawful and excessive force, in violation of CRUZ's rights under the Fourth Amendment.

43. By reason of the foregoing, plaintiff has suffered loss and damage.

AS AND FOR A FIFTH CAUSE OF ACTION: SEIZURE OF PROPERTY

44. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "43" as if fully set forth herein.

45. Defendants unlawfully seized and deprived defendant of the company of his dog.

46. Defendants further maliciously took said dog to a shelter where they falsely reported same as a lost or abandoned dog.

47. By reason of the foregoing defendants cause plaintiff damage and plaintiff has suffered loss and damage.

48. The reliefs sought herein are in excess of the jurisdictional limits of all lower

courts which would otherwise have jurisdiction of the claims herein.

49. Jury trial is demanded for all matters triable by jury.

WHEREFORE, Plaintiff requests that the Court grant the following reliefs:

- a) Damages on all causes of action in an amount in to established at the trial of this action;
- b) Punitive damages against the individual defendants;
- c) Statutory attorneys' fees under 42 U.S.C. §1988;
- d) Such other or further relief, including costs, disbursements and interest, as to this Court shall seem just and proper in the circumstances.

Dated: New York, New York
October 14, 2014

LAW OFFICES OF K.C. OKOLI, P.C.
Attorneys for Plaintiff
JOSE CRUZ
330 Seventh Avenue
15th Floor
New York, New York 10001
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By: _____

K.C. OKOLI, ESQ.

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SUMMONS AND COMPLAINT

LAW OFFICES OF K.C. OKOLI, P.C.
330 Seventh Avenue
15th Floor
New York, N.Y. 10001
(212) 564-8152 (voice)
(212) 268-3443 (fax)